

STATE OF NEW YORK

7049--A

2025-2026 Regular Sessions

IN SENATE

March 31, 2025

Introduced by Sen. FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Cities 1 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT authorizing the city of New York to discontinue certain parkland in Ferry Point Park in the borough of the Bronx

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subject to the provisions of this act, but notwithstanding
2 any provision of law to the contrary, the city of New York is author-
3 ized, upon such terms and conditions as may be agreed upon by the
4 city and Bally's New York Operating Company, LLC, and/or its affil-
5 iates, hereinafter "Bally's": (i) to discontinue the use as parkland and
6 sell at fair market value, the lands described in section three of this
7 act and convey such land to Bally's for the purposes of developing,
8 constructing, maintaining, operating, using, or occupying such lands
9 with a gaming facility, and in conjunction with such facility, commer-
10 cial, retail, entertainment, recreational, golf, hotel, convention
11 center, and/or community facility uses, parking, and roadways; (ii) to
12 discontinue the use as parkland and alienate the lands described in
13 section four of this act and to transfer such lands to the New York city
14 department of transportation for use as public roadways; and (iii) to
15 alienate the lands described in section five of this act and convey an
16 easement over such lands to Bally's for the purpose of making improve-
17 ments to an access road, or ingress and egress to the lands described in
18 section three of this act, provided that the access road shall be
19 publicly accessible and able to be used for park purposes. Upon
20 completion of any improvements, the land shall continue to be used for
21 park purposes and any disturbances to the surface of the land due to
22 the improvements shall be restored by Bally's and their successors
23 and/or assigns.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD10303-10-5

§ 2. The authorization provided in section one of this act shall be effective only upon the conditions that Bally's is awarded or issued a gaming facility license under title 2-A of article 13 of the racing, pari-mutuel wagering and breeding law, authorizing Bally's to own or operate a gaming facility located on the lands described in section three of this act, and the city of New York dedicates: (i) an amount equal to or greater than the fair market value of the parklands described in sections three and four of this act; and (ii) an amount equal to or greater than the fair market value of the easement conveyed over the lands described in section five of this act, towards the acquisition of new parklands and/or capital improvements to existing parklands and recreational facilities within the borough of the Bronx, in the city of New York.

§ 3. The lands authorized to be discontinued as parklands pursuant to section one of this act are more particularly described as follows:

BLOCK 5622 PART OF LOT 1
IN THE BOROUGH OF BRONX, CITY OF NEW YORK
BRONX COUNTY, NEW YORK

All that certain plot, piece, or parcel of land, situate, lying, and being in the Borough of Bronx, Bronx County, City and State of New York, bounded and described as follows:

BEGINNING at a point having an approximate coordinate value of North-
ing 234903.30 Easting 1029831.57 as referenced to New York State Plane
coordinate system NAD83 Long Island Zone, and running; thence

Along a curve to the left having an arc length of 21.98 feet, a radius
of 169.69 feet, and a central angle of 07°25'22" and being subtended by
a chord which bears North 25°58'11" East, a distance of 21.97 feet to a
point; thence

Along a curve to the left having an arc length of 38.41 feet, a radius
of 213.43 feet, and a central angle of 10°18'45" and being subtended by
a chord which bears North 21°15'35" East, a distance of 38.36 feet to a
point; thence

Along a curve to the left having an arc length of 101.07 feet, a radi-
us of 181.68 feet, and a central angle of 31°52'26" and being subtended
by a chord which bears North 00°10'04" East, a distance of 99.77 feet to
a point; thence

Along a curve to the left having an arc length of 65.65 feet, a radius
of 273.64 feet, and a central angle of 13°44'43" and being subtended by
a chord which bears North 22°38'30" West, a distance of 65.49 feet to a
point; thence

Along a curve to the left having an arc length of 5.08 feet, a radius
of 48.11 feet, and a central angle of 06°02'57" and being subtended by a
chord which bears North 35°16'12" West, a distance of 5.08 feet to a
point; thence

North 42°17'27" West, a distance of 21.97 feet to a point; thence

North 60°47'47" East, a distance of 60.79 feet to a point; thence

Along a curve to the right having an arc length of 37.23 feet, a radi-
us of 268.77 feet, and a central angle of 07°56'11" and being subtended
by a chord which bears North 70°23'51" East, a distance of 37.20 feet to
a point; thence

Along a curve to the right having an arc length of 152.46 feet, a
radius of 104.91 feet, and a central angle of 83°16'07" and being
subtended by a chord which bears South 64°00'00" East, a distance of
139.40 feet to a point; thence

1 Along a curve to the right having an arc length of 28.14 feet, a radi-
2 us of 143.47 feet, and a central angle of 11°14'21" and being subtended
3 by a chord which bears South 16°44'46" East, a distance of 28.10 feet to
4 a point; thence
5 Along a curve to the left having an arc length of 27.97 feet, a radius
6 of 35.00 feet, and a central angle of 45°47'19" and being subtended by a
7 chord which bears South 34°01'15" East, a distance of 27.23 feet to a
8 point; thence
9 South 56°54'55" East, a distance of 51.03 feet to a point; thence
10 Along a curve to the left having an arc length of 67.74 feet, a radius
11 of 190.28 feet, and a central angle of 20°23'56" and being subtended by
12 a chord which bears North 84°41'29" East, a distance of 67.39 feet to a
13 point; thence
14 Along a curve to the left having an arc length of 111.23 feet, a radi-
15 us of 190.28 feet, and a central angle of 33°29'31" and being subtended
16 by a chord which bears North 57°44'45" East, a distance of 109.65 feet
17 to a point; thence
18 North 41°00'00" East, a distance of 180.96 feet to a point; thence
19 North 00°00'00" West, a distance of 70.79 feet to a point; thence
20 Along a curve to the right having an arc length of 53.79 feet, a radi-
21 us of 889.17 feet, and a central angle of 03°27'59" and being subtended
22 by a chord which bears North 44°05'06" East, a distance of 53.79 feet to
23 a point; thence
24 Along a curve to the right having an arc length of 92.53 feet, a radi-
25 us of 120.00 feet, and a central angle of 44°10'55" and being subtended
26 by a chord which bears North 67°54'33" East, a distance of 90.26 feet to
27 a point; thence
28 North 90°00'00" East, a distance of 348.76 feet to a point; thence
29 Along a curve to the right having an arc length of 43.26 feet, a radi-
30 us of 80.00 feet, and a central angle of 30°59'06" and being subtended
31 by a chord which bears South 74°30'27" East, a distance of 42.74 feet to
32 a point; thence
33 South 88°19'39" East, a distance of 41.80 feet to a point; thence
34 South 56°04'53" East, a distance of 27.54 feet to a point; thence
35 Along a curve to the right having an arc length of 24.98 feet, a radi-
36 us of 30.75 feet, and a central angle of 46°32'29" and being subtended
37 by a chord which bears South 14°57'16" East, a distance of 24.29 feet to
38 a point; thence
39 Along a curve to the right having an arc length of 21.79 feet, a radi-
40 us of 69.88 feet, and a central angle of 17°51'48" and being subtended
41 by a chord which bears South 27°43'40" West, a distance of 21.70 feet to
42 a point; thence
43 Along a curve to the right having an arc length of 36.01 feet, a radi-
44 us of 145.66 feet, and a central angle of 14°09'46" and being subtended
45 by a chord which bears South 41°46'58" West, a distance of 35.91 feet to
46 a point; thence
47 Along a curve to the right having an arc length of 39.64 feet, a radi-
48 us of 80.00 feet, and a central angle of 28°23'32" and being subtended
49 by a chord which bears South 26°48'14" West, a distance of 39.24 feet to
50 a point; thence
51 South 41°00'00" West, a distance of 61.24 feet to a point; thence
52 Along a curve to the left having an arc length of 44.16 feet, a radius
53 of 185.00 feet, and a central angle of 13°40'38" and being subtended by
54 a chord which bears South 34°09'41" West, a distance of 44.06 feet to a
55 point; thence
56 South 27°19'22" West, a distance of 151.97 feet to a point; thence

1 Along a curve to the right having an arc length of 38.32 feet, a radi-
2 us of 115.00 feet, and a central angle of 19°05'28" and being subtended
3 by a chord which bears South 36°52'06" West, a distance of 38.14 feet to
4 a point; thence
5 Along a curve to the left having an arc length of 78.29 feet, a radius
6 of 1,161.97 feet, and a central angle of 03°51'38" and being subtended
7 by a chord which bears South 44°29'01" West, a distance of 78.28 feet to
8 a point; thence
9 Along a curve to the right having an arc length of 59.43 feet, a radi-
10 us of 182.89 feet, and a central angle of 18°37'02" and being subtended
11 by a chord which bears South 51°51'42" West, a distance of 59.17 feet to
12 a point; thence
13 Along a curve to the left having an arc length of 88.92 feet, a radius
14 of 124.85 feet, and a central angle of 40°48'23" and being subtended by
15 a chord which bears South 40°46'02" West, a distance of 87.05 feet to a
16 point; thence
17 Along a curve to the right having an arc length of 67.45 feet, a radi-
18 us of 146.83 feet, and a central angle of 26°19'13" and being subtended
19 by a chord which bears South 33°31'27" West, a distance of 66.86 feet to
20 a point; thence
21 Along a curve to the right having an arc length of 85.51 feet, a radi-
22 us of 2060.49 feet, and a central angle of 02°22'40" and being subtended
23 by a chord which bears South 47°06'29" West, a distance of 85.51 feet to
24 a point; thence
25 Along a curve to the left having an arc length of 124.70 feet, a radi-
26 us of 290.19 feet, and a central angle of 24°37'13" and being subtended
27 by a chord which bears South 35°13'19" West, a distance of 123.74 feet
28 to a point; thence
29 Along a curve to the left having an arc length of 265.70 feet, a radi-
30 us of 265.00 feet, and a central angle of 57°26'46" and being subtended
31 by a chord which bears South 01°35'29" West, a distance of 254.71 feet
32 to a point; thence
33 South 27°07'54" East, a distance of 121.47 feet to a point; thence
34 South 46°28'09" East, a distance of 86.12 feet to a point; thence
35 Along a curve to the left having an arc length of 93.75 feet, a radius
36 of 1,145.12 feet, and a central angle of 04°41'27" and being subtended
37 by a chord which bears South 16°44'33" West, a distance of 93.73 feet to
38 a point; thence
39 Along a curve to the left having an arc length of 297.54 feet, a radi-
40 us of 2,340.83 feet, and a central angle of 07°16'58" and being
41 subtended by a chord which bears South 10°27'28" West, a distance of
42 297.34 feet to a point; thence
43 Along a curve to the right having an arc length of 47.94 feet, a radi-
44 us of 42.37 feet, and a central angle of 64°50'11" and being subtended
45 by a chord which bears North 67°46'46" West, a distance of 45.42 feet to
46 a point; thence
47 Along a curve to the right having an arc length of 89.56 feet, a radi-
48 us of 697.08 feet, and a central angle of 07°21'40" and being subtended
49 by a chord which bears North 31°40'50" West, a distance of 89.50 feet to
50 a point; thence
51 North 28°00'00" West, a distance of 282.38 feet to a point; thence
52 North 21°35'16" West, a distance of 122.52 feet to a point; thence
53 North 27°17'27" West, a distance of 586.32 feet to a point; thence
54 Along a curve to the right having an arc length of 45.25 feet, a radi-
55 us of 95.00 feet, and a central angle of 27°17'27" and being subtended

1 by a chord which bears North 13°38'44" West, a distance of 44.82 feet to
2 a point; thence

3 North 00°00'00" West, a distance of 19.63 feet to a point; thence

4 Along a curve to the left having an arc length of 34.86 feet, a radius
5 of 59.00 feet, and a central angle of 33°51'17" and being subtended by a
6 chord which bears North 16°55'39" West, a distance of 34.36 feet to a
7 point; thence

8 North 90°00'00" West, a distance of 56.07 feet to the Point or Place
9 of Beginning

10 Encompassing an area of 685,283 square feet or 15.73 acres, more or
11 less

12 § 4. The tracts of parkland authorized to be alienated for roadway
13 improvements pursuant to section one of this act are more particularly
14 described as follows:

15 All that certain plot, piece, or parcel of land, situate, lying, and
16 being in the Borough of Bronx, Bronx County, City and State of New York,
17 bounded and described as follows:

18 BEGINNING at a point on the southerly Right of Way Line of Schley
19 Avenue (80 feet wide), 80.00' +/- westerly from the westerly curb face
20 of a private road west of the Whitestone Bridge approach, having an
21 approximate coordinate value of Northing 236695.73 Easting 1029272.80 as
22 referenced to the New York State Plane coordinate system NAD83 Long
23 Island Zone, and running; thence

24 Along said southerly Right of Way line of Schley Avenue North
25 89°27'54" East, a distance of 104.85 feet to a point; thence

26 South 17°20'08" West, a distance of 48.07 feet to a point; thence

27 Continuing along a curve to the left having an arc length of 54.48
28 feet, a radius of 686.59 feet, and a central angle of 04°32'48" and
29 being subtended by a chord which bears South 19°36'32" East, a distance
30 of 54.47 feet; thence

31 South 21°36'51" West, a distance of 41.68 feet to a point; thence

32 Continuing along a curve to the left having an arc length of 12.20
33 feet, a radius of 102.00 feet, and a central angle of 06°51'4" and being
34 subtended by a chord which bears South 24°28'24" West, a distance of
35 12.19 feet; thence

36 South 28°23'11" West, a distance of 67.82 feet to a point; thence

37 Continuing along a curve to the left having an arc length of 60.74
38 feet, a radius of 1,822.59 feet, and a central angle of 01°54'34" and
39 being subtended by a chord which bears South 27°25'53" West, a distance
40 of 60.74 feet; thence

41 South 24°07'39" West, a distance of 39.35 feet to a point; thence

42 Continuing along a curve to the left having an arc length of 67.21
43 feet, a radius of 865.09 feet, and a central angle of 04°27'04" and
44 being subtended by a chord which bears South 21°54'07" West, a distance
45 of 67.19 feet; thence

46 Continuing along a curve to the left having an arc length of 85.24
47 feet, a radius of 1,661.03 feet, and a central angle of 02°56'25" and
48 being subtended by a chord which bears South 18°12'22" West, a distance
49 of 85.23 feet; thence

50 South 14°28'04" West, a distance of 22.59 feet to a point; thence

51 Continuing along a curve to the left having an arc length of 98.16
52 feet, a radius of 6,423.61 feet, and a central angle of 00°52'32" and
53 being subtended by a chord which bears South 11°45'41" West, a distance
54 of 98.16 feet; thence

55 South 09°39'14" West, a distance of 22.44 feet to a point; thence

56 South 06°08'12" West, a distance of 40.10 feet to a point; thence

1 North 90°00'00" East, a distance of 20.18 feet to a point; thence
2 Continuing along a curve to the left having an arc length of 119.60
3 feet, a radius of 955.06 feet, and a central angle of 07°10'30" and
4 being subtended by a chord which bears South 02°45'51" West, a distance
5 of 119.52 feet; thence
6 Continuing along a curve to the left having an arc length of 361.95
7 feet, a radius of 1,060.23 feet, and a central angle of 19°33'36" and
8 being subtended by a chord which bears South 10°07'15" East, a distance
9 of 360.19 feet; thence
10 South 24°31'03" East, a distance of 170.06 feet to a point; thence
11 South 30°10'25" East, a distance of 48.26 feet to a point; thence
12 Continuing along a curve to the left having an arc length of 226.76
13 feet, a radius of 1,015.47 feet, and a central angle of 12°47'40" and
14 being subtended by a chord which bears South 38°08'01" East, a distance
15 of 226.29 feet; thence
16 South 49°27'31" East, a distance of 106.19 feet to a point; thence
17 Continuing along a curve to the left having an arc length of 143.06
18 feet, a radius of 352.18 feet, and a central angle of 23°16'29" and
19 being subtended by a chord which bears South 64°29'57" East, a distance
20 of 142.08 feet; thence
21 North 88°29'48" East, a distance of 54.14 feet to a point; thence
22 South 26°01'23" East, a distance of 21.98 feet to a point; thence
23 North 88°29'48" East, a distance of 33.18 feet on Triborough Bridge
24 Abutment; thence
25 Along said Triborough Bridge Abutment, North 63°46'52" East, a
26 distance of 104.97 feet to a point; thence
27 North 44°28'24" East, a distance of 31.67 feet to a point; thence
28 Along a curve to the left having an arc length of 31.98 feet, a radius
29 of 168.43 feet, and a central angle of 10°52'41" and being subtended by
30 a chord which bears North 21°32'33" East, a distance of 31.93 feet;
31 thence
32 Continuing along a curve to the left having an arc length of 76.04
33 feet, a radius of 136.68 feet, and a central angle of 31°52'28" and
34 being subtended by a chord which bears North 00°10'04" East, a distance
35 of 75.06 feet; thence
36 Continuing along a curve to the left having an arc length of 54.85
37 feet, a radius of 228.64 feet, and a central angle of 13°44'44" and
38 being subtended by a chord which bears North 22°38'30" West, a distance
39 of 54.72 feet; thence
40 North 27°46'32" West, a distance of 21.86 feet to a point; thence
41 North 29°29'17" West, a distance of 10.83 feet to a point; thence
42 North 31°08'00" West, a distance of 192.53 feet to a point; thence
43 Continuing along a curve to the right having an arc length of 32.05
44 feet, a radius of 168.65 feet, and a central angle of 10°53'16" and
45 being subtended by a chord which bears North 25°40'00" West, a distance
46 of 32.00 feet; thence
47 Continuing along a curve to the right having an arc length of 47.70
48 feet, a radius of 509.64 feet, and a central angle of 05°21'44" and
49 being subtended by a chord which bears North 17°32'26" West, a distance
50 of 47.68 feet; thence
51 Continuing along a curve to the right having an arc length of 46.67
52 feet, a radius of 278.71 feet, and a central angle of 09°35'42" and
53 being subtended by a chord which bears North 10°03'42" West, a distance
54 of 46.62 feet; thence
55 North 05°58'34" West, a distance of 24.21 feet to a point; thence

1 Continuing along a curve to the right having an arc length of 30.58
2 feet, a radius of 211.91 feet, and a central angle of $08^{\circ}16'02''$ and
3 being subtended by a chord which bears North $01^{\circ}50'34''$ West, a distance
4 of 30.55 feet; thence
5 North $01^{\circ}29'53''$ East, a distance of 235.97 feet to a point; thence
6 Continuing along a curve to the left having an arc length of 43.63
7 feet, a radius of 668.56 feet, and a central angle of $03^{\circ}44'20''$ and
8 being subtended by a chord which bears North $03^{\circ}22'07''$ East, a distance
9 of 43.62 feet; thence
10 North $06^{\circ}09'48''$ East, a distance of 196.57 feet to a point; thence
11 Continuing along a curve to the right having an arc length of 81.69
12 feet, a radius of 940.26 feet, and a central angle of $04^{\circ}58'39''$ and
13 being subtended by a chord which bears North $03^{\circ}40'28''$ East, a distance
14 of 81.66 feet; thence
15 Continuing along a curve to the right having an arc length of 65.16
16 feet, a radius of 3,253.97 feet, and a central angle of $01^{\circ}08'50''$ and
17 being subtended by a chord which bears North $00^{\circ}36'42''$ East, a distance
18 of 65.16 feet; thence
19 Continuing along a curve to the right having an arc length of 90.23
20 feet, a radius of 1,151.41 feet, and a central angle of $04^{\circ}29'23''$ and
21 being subtended by a chord which bears North $02^{\circ}12'25''$ West, a distance
22 of 90.20 feet; thence
23 North $04^{\circ}07'44''$ West, a distance of 198.55 feet to a point; thence
24 North $06^{\circ}07'46''$ West, a distance of 44.54 feet to a point; thence
25 Continuing along a curve to the right having an arc length of 117.21
26 feet, a radius of 2,432.36 feet, and a central angle of $02^{\circ}45'39''$ and
27 being subtended by a chord which bears North $10^{\circ}15'28''$ West, a distance
28 of 117.20 feet; thence
29 Continuing along a curve to the right having an arc length of 126.75
30 feet, a radius of 918.30 feet, and a central angle of $07^{\circ}54'30''$ and
31 being subtended by a chord which bears North $03^{\circ}40'51''$ West, a distance
32 of 126.65 feet; thence
33 North $00^{\circ}50'37''$ West, a distance of 37.69 feet to a point on said
34 southerly former Right of Way line of Schley Avenue; thence
35 Along said southerly former Right of Way line of Schley Avenue, North
36 $89^{\circ}27'54''$ East, a distance of 167.92 feet to a point; thence
37 South $09^{\circ}20'48''$ West, a distance of 184.52 feet to a point; thence
38 Continuing along a curve to the left having an arc length of 104.41
39 feet, a radius of 278.23 feet, and a central angle of $21^{\circ}30'05''$ and
40 being subtended by a chord which bears South $04^{\circ}29'37''$ West, a distance
41 of 103.80 feet; thence
42 Continuing along a curve to the right having an arc length of 26.33
43 feet, a radius of 1,168.01 feet, and a central angle of $01^{\circ}17'30''$ and
44 being subtended by a chord which bears South $08^{\circ}17'18''$ East, a distance
45 of 26.33 feet; thence
46 South $04^{\circ}00'38''$ East, a distance of 97.79 feet to a point; thence
47 Continuing along a curve to the right having an arc length of 397.84
48 feet, a radius of 1,834.73 feet, and a central angle of $12^{\circ}25'27''$ and
49 being subtended by a chord which bears South $00^{\circ}12'01''$ East, a distance
50 of 397.07 feet; thence
51 South $06^{\circ}27'58''$ West, a distance of 115.47 feet to a point; thence
52 Along a curve to the left having an arc length of 106.95 feet, a radi-
53 us of 1,156.69 feet, and a central angle of $05^{\circ}17'53''$ and being
54 subtended by a chord which bears South $03^{\circ}58'44''$ West, a distance of
55 106.92 feet; thence
56 South $01^{\circ}25'02''$ West, a distance of 207.99 feet to a point; thence

1 Along a curve to the left having an arc length of 130.46 feet, a radi-
2 us of 266.33 feet, and a central angle of 28°04'01" and being subtended
3 by a chord which bears South 12°21'18" East, a distance of 129.16 feet;
4 thence
5 South 31°05'36" East, a distance of 126.78 feet to a point; thence
6 Along a curve to the right having an arc length of 71.28 feet, a radi-
7 us of 922.20 feet, and a central angle of 04°25'42" and being subtended
8 by a chord which bears South 30°49'48" East, a distance of 71.26 feet;
9 thence
10 South 60°47'47" West, a distance of 60.79 feet to a point; thence
11 South 42°17'27" East, a distance of 21.97 feet to a point; thence
12 Along a curve to the right having an arc length of 5.08 feet, a radius
13 of 48.11 feet, and a central angle of 06°02'57" and being subtended by a
14 chord which bears South 35°16'12" East, a distance of 5.08 feet; thence
15 Along a curve to the right having an arc length of 65.65 feet, a radi-
16 us of 273.64 feet, and a central angle of 13°44'43" and being subtended
17 by a chord which bears South 22°38'30" East, a distance of 65.49 feet;
18 thence
19 Along a curve to the right having an arc length of 101.07 feet, a
20 radius of 181.68 feet, and a central angle of 31°52'26" and being
21 subtended by a chord which bears South 00°10'04" West, a distance of
22 99.77 feet; thence
23 Along a curve to the right having an arc length of 38.41 feet, a radi-
24 us of 213.43 feet, and a central angle of 10°18'45" and being subtended
25 by a chord which bears South 21°15'34" West, a distance of 38.36 feet;
26 thence
27 Along a curve to the right having an arc length of 21.98 feet, a radi-
28 us of 169.69 feet, and a central angle of 07°25'22" and being subtended
29 by a chord which bears South 25°58'11" West, a distance of 21.97 feet;
30 thence
31 South 31°55'58" West, a distance of 13.33 feet to a point; thence
32 South 26°10'20" East, a distance of 42.37 feet to a point; thence
33 Along a curve to the right having an arc length of 384.71 feet, a
34 radius of 334.33 feet, and a central angle of 65°55'45" and being
35 subtended by a chord which bears South 64°27'31" West, a distance of
36 363.83 feet; thence
37 North 83°45'53" West, a distance of 119.81 feet to a point; thence
38 Along a curve to the right having an arc length of 202.70 feet, a
39 radius of 452.18 feet, and a central angle of 25°41'03" and being
40 subtended by a chord which bears North 65°18'14" West, a distance of
41 201.01 feet; thence
42 North 49°27'31" West, a distance of 113.18 feet to a point; thence
43 Along a curve to the right having an arc length of 254.89 feet, a
44 radius of 1,115.47 feet, and a central angle of 13°05'33" and being
45 subtended by a chord which bears North 38°12'39" West, a distance of
46 254.34 feet; thence
47 North 30°10'25" West, a distance of 54.53 feet to a point; thence
48 North 24°31'03" West, a distance of 178.94 feet to a point; thence
49 Along a curve to the right having an arc length of 399.79 feet, a
50 radius of 1,160.23 feet, and a central angle of 19°44'34" and being
51 subtended by a chord which bears North 10°13'59" West, a distance of
52 397.81 feet; thence
53 Along a curve to the right having an arc length of 132.59 feet, a
54 radius of 1,055.06 feet, and a central angle of 07°12'02" and being
55 subtended by a chord which bears North 02°47'59" East, a distance of
56 132.50 feet; thence

1 North 90°00'00" West, a distance of 20.12 feet to a point; thence
2 North 07°28'28" East, a distance of 60.29 feet to a point; thence
3 Along a curve to the right having an arc length of 349.05 feet, a
4 radius of 1,216.34 feet, and a central angle of 16°26'32" and being
5 subtended by a chord which bears North 17°17'27" East, a distance of
6 347.86 feet; thence
7 North 27°32'55" East, a distance of 57.91 feet to a point; thence
8 North 27°54'01" East, a distance of 87.16 feet to a point; thence
9 Along a curve to the right having an arc length of 29.51 feet, a radi-
10 us of 110.68 feet, and a central angle of 15°16'35" and being subtended
11 by a chord which bears North 18°23'49" East, a distance of 29.42 feet;
12 thence
13 North 27°46'34" East, a distance of 91.63 feet to a point; thence
14 North 24°52'23" East, a distance of 66.11 feet to a point; thence
15 North 22°02'59" East, a distance of 76.72 feet to a point; thence
16 Along a curve to the left having an arc length of 57.95 feet, a radius
17 of 1,168.76 feet, and a central angle of 02°50'27" and being subtended
18 by a chord which bears North 19°08'12" East, a distance of 57.95 feet to
19 the Point or Place of Beginning.
20 Encompassing an area of 418,365 square feet or 9.61 acres, more or
21 less.
22 § 5. The tract of parkland authorized to be alienated and conveyed as
23 an easement pursuant to subdivision (iii) of section one of this act is
24 more particularly described as follows:
25 All that certain plot, piece, or parcel of land, situate, lying, and
26 being in the Borough of Bronx, Bronx County, City and State of New York,
27 bounded and described as follows:
28 BEGINNING at a point having an approximate coordinate value of North-
29 ing 234891.99 Easting 1029824.52 as referenced to New York State Plane
30 coordinate system NAD83 Long Island Zone, and running; thence
31 North 31°55'58" East, a distance of 13.33 feet to a point; thence
32 North 90°00'00" East, a distance of 56.07 feet to a point; thence
33 Along a curve to the right having an arc length of 34.86 feet, a radi-
34 us of 59.00 feet, and a central angle of 33°51'17" and being subtended
35 by a chord which bears South 16°55'39" East, a distance of 34.36 feet to
36 a point; thence
37 South 00°00'00" East, a distance of 19.63 feet to a point; thence
38 Along a curve to the left having an arc length of 45.25 feet, a radius
39 of 95.00 feet, and a central angle of 27°17'27" and being subtended by a
40 chord which bears South 13°38'44" East, a distance of 44.82 feet to a
41 point; thence
42 South 27°17'27" East, a distance of 586.32 feet to a point; thence
43 South 21°35'16" East, a distance of 122.52 feet to a point; thence
44 South 28°00'00" East, a distance of 282.38 feet to a point; thence
45 Along a curve to the left having an arc length of 89.56 feet, a radius
46 of 697.08 feet, and a central angle of 07°21'40" and being subtended by
47 a chord which bears South 31°40'50" East, a distance of 89.50 feet to a
48 point; thence
49 Along a curve to the left having an arc length of 47.94 feet, a radius
50 of 42.37 feet, and a central angle of 64°50'11" and being subtended by a
51 chord which bears South 67°46'46" East, a distance of 45.42 feet to a
52 point; thence
53 South 06°18'34" West, a distance of 41.41 feet to a point; thence
54 South 05°06'56" West, a distance of 56.14 feet to a point; thence
55 South 03°32'44" West, a distance of 72.15 feet to a point; thence

1 North 26°10'20" West, a distance of 1,372.16 feet to the Point or
2 Place of Beginning

3 Encompassing an area of 61,945 square feet or 1.42 acres, more or less

4 § 6. In the event that the city of New York received any funding,
5 support or assistance from the federal government for the purchase,
6 maintenance or improvement of the parklands set forth in section three,
7 four, or five of this act, the discontinuance and alienation of such
8 parklands authorized by the provisions of this act shall not occur until
9 the city of New York has complied with any federal requirements pertain-
10 ing to the alienation or conversion of parklands, including satisfying
11 the secretary of the interior that the alienation or conversion complies
12 with all conditions which the secretary of the interior deems necessary
13 to assure the substitution of other lands shall be equivalent in fair
14 market value and usefulness to the lands being alienated or converted.

15 § 7. Nothing in this act shall be construed as intended to preempt or
16 supersede any provision of article 13 of the racing, pari-mutuel wager-
17 ing and breeding law or sections 197-c and 197-d of the New York City
18 charter pertaining to the Uniform Land Use Review Procedure (ULURP).

19 § 8. If Bally's is awarded or issued a gaming facility license under
20 title 2-A of article 13 of the racing, pari-mutuel wagering and breeding
21 law and construction of a gaming facility on the parklands described in
22 section three of this act is not commenced within fifteen years of the
23 effective date of this act or if such parklands shall ever be used for a
24 purpose other than for the purposes described in section one of this
25 act, the parklands described in sections three and four of this act
26 shall revert back to the city of New York department of parks and recre-
27 ation to be used for park and recreational purposes, and the easement
28 over the parklands described in section five of this act shall termi-
29 nate.

30 § 9. This act shall take effect immediately.